

Line 8

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

TECH KY, an individual,

Plaintiff,

v.

24 HOUR FITNESS USA, LLC, a California
Limited Liability Company; JESUS
RAMIREZ HERNANDEZ, an individual; and
DOES 1 to 100, inclusive,

Defendants.

Case No. 24CV444162

**ORDER GRANTING MOTION TO
COMPEL**

Plaintiff TECH KY's motion to compel Defendant Jesus Ramirez Hernandez to serve full and complete verified answers, without objection, to Plaintiff's form interrogatories (set one) and for \$1,500 in sanctions came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025, 2025.

Plaintiff served form interrogatories (set one) on Defendant on February 21, 2025. To date, Defendant has served no responses. In fact, Defendant did not oppose this motion despite having been served by U.S. mail with the notice of motion and motion on July 22, 2025. "[T]he failure to file an opposition creates an inference that the motion [] is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.)

A party responding to interrogatories must respond in writing, under oath separately to each interrogatory with an answer that contains the information sought, an exercise of the party's option to produce writings from which the answer can be determined, or an objection to the interrogatory. (Code Civ. Pro. §2030.210(a).) The responding party must make a reasonable, good faith effort to obtain information to provide a response and generally may not respond to the interrogatory by simply stating it cannot respond. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406; Code Civ. Pro. §2030.210(c).)

Where, as here, a responding party fails to timely respond to Interrogatories, the responding party waives all objections to the interrogatories, including objections based on privilege or on the protection for work product. (Code of Civ. Proc. §2030.290(a).) Where a party demonstrates the failure to respond was due to mistake, inadvertence, or excusable neglect and has since served a response, the court may set aside the waiver. (Code of Civ. Proc. §2030.290(a)(2).) Defendant has made no such showing here.

Code of Civil Procedure section 2030.290(c) provides: "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Defendant is therefore ordered to serve verified code-compliant responses without objections and to pay Plaintiff \$825 in attorneys' fees within 20 days of service of this final order.

IT IS SO ORDERED.

Date: _____

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 10

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

AMERICAN EXPRESS NATIONAL BANK,

Plaintiff,

v.

MYRNA MILANO, an individual,

Defendant.

Case No. 24CV454785

**ORDER REGARDING MOTION TO SET
ASIDE DEFAULT AND DEFAULT
JUDGMENT**

Defendant Myrna Milano's motion to set aside default and default judgment came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

Plaintiff filed this lawsuit on December 23, 2024 seeking \$10,169.80 in damages. Plaintiff filed a proof of service with the Court on January 8, 2025 which states Defendant was personally served with the summons and complaint on January 8, 2025. Under Evidence code section 647, a registered process server's declaration of service establishes a presumption that the facts stated in the declaration are true. (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.) Defendant does not dispute this service.

Default was entered against Defendant on May 13, 2025, and a clerk's judgment for \$9,215.80 in damages and \$442.61 in costs was entered against Defendant on May 16, 2025.